

26STCV01294 26STCV01294

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-07-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C07%2F23%2F2026

Source SHA-256: 1a75092eac7648c177260fea727b93adccf40762d2092b3fcb332940b6725f87

Case Number: 26STCV01294 Hearing Date: July 23, 2026 Dept: 408

1.

Defendants Jae H. Kim and JHK Law, APC's Demurrer to Plaintiff Luna D'Sol's First Amended Complaint is SUSTAINED.

2. Defendants Jae H.

Kim and JHK Law, APC's Motion to Strike Portions of Plaintiff Luna D'Sol's First Amended Complaint is DENIED as moot.

The court will inquire whether leave to amend should be granted at the hearing.

I.

BACKGROUND

On January

14, 2026, Plaintiff Luna D'Sol ("Plaintiff") filed a complaint against

Defendants Jae H. Kim and JHK Law, APC alleging causes of action for:

1.

Breach

of Fiduciary Duty;

2.

Professional

Negligence (Legal Malpractice);

3.

Cancellation

of Instruments (Civ. Code, § 3412);

4.

Declaratory

Relief;

5.

Constructive

Fraud; and

6.

Undue

Influence.

On May 6,

2026, Plaintiff filed a First Amended Complaint ("FAC") against Defendants Jae

H. Kim ("Kim"), Cecilia S. Roh ("Roh"), and JHK Law, APC ("JHK", collectively "Defendants")

alleging causes of action for:

1.

Breach

of Fiduciary Duty;

2.

Professional

Negligence (Legal Malpractice);

3.

Fraud

in the Factum and Declaration of Void Instruments;

4.

Cancellation

of Instruments (Civ. Code, § 3412);

5.

Declaratory

Relief (Code Civ. Proc., § 1060);

6.

Constructive

Fraud (Civ. Code, § 1573);

7.

Undue

Influence (Civ. Code, § 1575; Welf. & Inst. Code, § 15610.70);

8.

Quiet

Title (Code Civ. Proc., §§ 760.020, 761.020);

9.

Aiding

and Abetting Breach of Fiduciary Duty;

10.

Actual

Fraud – Intentional Misrepresentation and Concealment (Civ. Code, §§ 1572, 1709, 1710); and

11.

Ejectment

(Recovery of Possession and Mesne Profits).

On June 16,

2026, Kim and JHK (“Moving Defendants”) filed this Demurrer and Motion to Strike as to Plaintiff’s FAC. On July 9, 2026, Plaintiff filed an opposition.

On July 16, 2026, Moving Defendants filed a reply.

II.

DEMURRER

A.

Legal Standard

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of” various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on

the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pled or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

B. Discussion

Moving Defendants demur to the first through fourth, sixth through seventh, and tenth causes of action alleged in Plaintiff’s FAC pursuant to Code of Civil Procedure section 430.10, subdivision (e) and (f), on the grounds that Plaintiff fails to state sufficient facts to constitute such cause of action and the pleading is uncertain.

1.

Uncertainty

A

party may demur to a complaint where “[t]he pleading is uncertain,” meaning also that it is “ambiguous [or] unintelligible.” (Code Civ. Proc. § 430.10, subd. (f).) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of*

Calif., Inc. (1993) 14 Cal.App.4th
612, 616.)

Moving

Defendants demur on the grounds that Plaintiff's FAC is uncertain and unintelligible as the pleading is composed of an unascertainable mix of transactions between the parties without clearly allegedly Moving Defendants' purported wrongful conduct. (Demurrer, at pp. 12-13.)

The

FAC alleges that Plaintiff is a transgender woman who owned and managed four residential properties in California. (FAC, ¶ 1.) Plaintiff was also a participant in the MetLife Prepaid Legal Plan through her employment through which she obtained access to participating attorneys, including Kim. (Ibid.) Kim is the president and sole shareholder of JHK and provided legal services to Plaintiff. (Id., ¶ 2.) The FAC alleges that, on April 29, 2025, Kim conducted an initial consultation with Plaintiff regarding (1) a civil debt collection lawsuit filed against Plaintiff, Gomez v. Ravada Case No. 24VECV03217 ("Gomez Action"); (2) two active escrow transactions; and (3) an impending foreclosure of Plaintiff's primary residence. (Id., ¶¶ 14-15.) The remainder of the FAC alleges a variety of interactions between the parties regarding such legal matters.

Following

a review of the FAC, the court finds that Plaintiff fails to lay out the alleged wrongdoing of Defendants in correlation with the legal matters at issue in a clear and concise manner making it extremely difficult to ascertain which facts support the individual causes of action. The FAC is fatally unclear such that it would be unreasonable for the court to expect that any defendant could determine which issues they must address. Without a clear layout of Plaintiff's claims against Defendants, the court lacks the necessary framework to assess any additional arguments.

Accordingly,

the special demurrer for uncertainty is sustained.

III.

MOTION TO STRIKE

A.

Legal Standard

Pursuant to Code of Civil Procedure section 436, “the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) The grounds for a motion to strike must “appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

B.

Discussion

Moving Defendants seek to strike Plaintiff’s request for prejudgment interest, punitive damages, and attorneys’ fees from the FAC. (Motion, at p. 7.)

As the court

sustained Moving Defendants’ Demurrer for uncertainty as to the entirety of Plaintiff’s FAC, the motion is denied as moot.

IV.

CONCLUSION

1. Defendants Jae H.

Kim and JHK Law, APC’s Demurrer to Plaintiff Luna D’Sol’s First Amended Complaint is SUSTAINED.

2. Defendants Jae H.

Kim and JHK Law, APC’s Motion to Strike Portions of Plaintiff Luna D’Sol’s First Amended Complaint is DENIED as moot.

The court will inquire whether leave to amend should be granted at the hearing.